

HOUSE No. 3538

The Commonwealth of Massachusetts

PRESENTED BY:

James J. O'Day

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to reduce administrative burden for government and industry.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James J. O'Day</i>	<i>14th Worcester</i>	<i>1/14/2025</i>

HOUSE No. 3538

By Representative O'Day of West Boylston, a petition (accompanied by bill, House, No. 3538) of James J. O'Day for legislation to further regulate the towing away and storage of motor vehicles. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to reduce administrative burden for government and industry.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 6B of chapter 159B of the general laws, as appearing in the 2022
2 official edition, shall be amended by striking the fifth paragraph in its entirety.

3 SECTION 2. (a) Notwithstanding any general or special law to the contrary, the
4 Department of Public Utilities shall conduct a study for the purposes of making
5 recommendations on improving the process for determining the rate of reimbursement for the
6 involuntary towing of motor vehicles.

7 (b) In conducting its analysis, the Department shall: (1) report on the history of the
8 process for establishing the rate of reimbursement for involuntary towed motor vehicles,
9 including the number of rate adjustments, requests for rate adjustments and their outcome; (2)
10 identify known issues or problems associated with the current process for establishing said rates,
11 including any distinction between regulatory rulemaking and the rate setting process; (3) provide
12 an analysis of the methods for determining the applicable rates for involuntary towing used in

other states; (4) report on the number of tow companies engaged in involuntary towing over time in Massachusetts, including but not limited to, a delineation of those tow companies who hold a certificate, but do not engage in involuntary towing; (5) identify the economic factors impacting towing companies and how such costs are factored into determining the involuntary tow rate; and (6) determine, to the extent possible, any difference in costs for associated with trespass towing versus police-ordered tows for companies so authorized under an involuntary certificate.

(c) The Department shall hold at least two public hearings to assist in the collection and evaluation of data and testimony; provided further, that at least one hearing occur outside of the City of Boston.

(d) The Department shall prepare a written report detailing its findings and recommendations, together with drafts of legislation, as may be necessary to carry those recommendations into effect. The Department shall submit its initial report to the clerks of the senate and house of representatives, the chairs of the house and senate committees on ways and means and the chairs of the joint committee on telecommunication, utilities and energy not later than 6 months after the effective date of this act.